

TENTATIVE RULINGS

DEPT C28

Judge Thomas S. McConville

June 8, 2026 at 2:00 p.m.

Court Reporters: Official court reporters (i.e., court reporters employed by the Court) are **NOT** typically provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it will be the party's responsibility to provide a court reporter. Parties must comply with the Court's policy on the use of privately retained court reporters which can be found at:

- [Civil Court Reporter Pooling](#); and
- For additional information, please see the court's website at [Court Reporter Interpreter Services](#) for additional information regarding the availability of court reporters.

Tentative rulings: The court endeavors to post tentative rulings on the court's website in the morning, prior to the afternoon hearing. However, ongoing proceedings such as jury trials may prevent posting by that time. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted. The court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5228. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Appearances: Department C28 conducts non-evidentiary proceedings, such as law and motion hearings, remotely by Zoom videoconference pursuant to Code of Civil Procedure section 367.75 and Orange County Local Rule 375. Any party or attorney, however, may appear in person by coming to Department C28 at the Central Justice Center, located at 700 Civic Center Drive West in Santa Ana, California. All counsel and self-represented parties appearing in-person must check in with the courtroom clerk or courtroom attendant before the designated hearing time.

All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at <https://www.occourts.org/media-relations/aci.html>. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at <https://www.occourts.org/media-relations/aci.html>. Those procedures and guidelines will be strictly enforced.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this department by either coming to the department at the designated hearing time or contacting the courtroom clerk at (657) 622-5228 to obtain login information. For remote appearances by the media or public, please contact the courtroom clerk 24 hours in advance so as not to interrupt the hearings.

Arguments: The court will allow arguments on the pending motions up to 10 minutes per side, but those arguments must not repeat arguments previously made in each parties' applicable briefs.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

#	Case Name	Tentative
50.		
51.	Masaoka v. Ayres Self Storage 2023-01357243	Defendant Ayres Self Storage Costa Mesa, LLC's motion to declare plaintiff Arther Masaoka a vexatious litigant and dismiss the action or require a bond is DENIED. Defendant requests relief pursuant to Code of Civil Procedure section 391.3 (b), or in the alternative, Code of Civil Procedure section 391.3(a). Section 391.3(b) requires defendant to show, among other things, that the litigation has "no merit...." (Code Civ. Proc., § 391.3, subd. (b).) Section 391.3(a) similarly requires defendant to show, among other things, that "there is no reasonable probability that the plaintiff will prevail in the litigation against the moving defendant...." (Code Civ. Proc., § 391.3, subd. (a).) Defendant has failed to show the litigation has "no merit" or that "there is no reasonable probability that the plaintiff will prevail in the litigation against the moving defendant" either based on the evidence or as matter of law. (Code Civ. Proc., § 391.3, subds. (a), (b); see <i>Golin v. Allenby</i> (2010) 190 Cal.App.4th 616, 640 [burden], 642 [abuse of discretion to determine plaintiff has no reasonable probability of prevailing without a legal or evidentiary basis for the determination].) The complaint in this action alleges a single cause of action for premises liability (negligence) arising out of an incident occurring at defendant's property located at 1880 Whittier Ave, Costa Mesa, CA 92627 on 10/22/21. Plaintiff alleges defendant negligently owned, controlled, maintained, managed, and/or operated a freight elevator, causing goods placed in the elevator to fall and strike plaintiff. (See Compl. ¶¶ Prem.L-1, Prem.L-2.) At his deposition, plaintiff clarified his allegations by testifying as follows. At the time of the incident, plaintiff loaded a bed frame (weighing about 100-120 lbs.) and 7-10 boxes (each weighing about 50-80 lbs.) onto two rolling carts that were already in the subject freight elevator, closed the elevator entrance access door, and pushed the "up" button to send the items to the second floor. (Holaday Decl. at Ex. 1 [Pl. Depo. at pp. 47-53].) Plaintiff took the stairs and arrived at the second

floor before the elevator stopped moving. (*Id.* at Ex. 1 [Pl. Depo. p. 57].) Plaintiff waited for the elevator on the second floor, approximately 1.5–3 feet away from the elevator doors. (*Id.* at Ex. 1 [Pl. Depo. pp. 57-58].) When the elevator stopped moving, plaintiff heard a loud crash coming from the inside of the elevator and the elevator doors flung open on their own. (*Id.* at Ex. 1 [Pl. Depo. p. 58].) When the doors flung open, one of the doors “tore [his] shoe and the upper part of [his] foot was ripped open,” and “mangled” his foot. (*Id.* at Ex. 1 [Pl. Depo. pp. 60-61].) “Then something hit [him] in the forehead,” causing plaintiff to fall and hit the back of his head on the floor. (*Ibid.*)

Defendant contends that the litigation has no merit and that plaintiff has no reasonable probability of prevailing in this action based on the declaration of its expert mechanical engineer, Brad Rutledge, MS PE. (See Mtn. Memo. P&As at pp. 5, 14-20.) Mr. Rutledge’s declaration does not negate these allegations or otherwise show that there is no reasonable probability that plaintiff will prevail in this litigation, as discussed below.

Mr. Rutledge’s declaration does not establish that defendant was not negligent. Specifically, Mr. Rutledge declares the elevator displayed a Conveyance Permit with an expiration date of 1/25/17. (Rutledge Decl. ¶ 16.) He then declares that “[t]he subject elevator was inspected independently by the State of California Department of Industrial Relations Division of Occupational Safety and Health with Conveyance Permits issued before and after the claimed incident” (*id.* ¶¶ 6, 19, 23)—but fails to provide any relevant dates or otherwise state that the elevator was in fact properly permitted at the time of the incident on 10/22/21. (See *id.*, in passim.) Merely claiming that the elevator was properly permitted “before” the incident (which could be before 1/25/17) and “after” the incident does not show that it was properly permitted for use at the time of the incident. Mr. Rutledge further declares the subject elevator was serviced and “had maintenance performed on [5/5/21]” by a private elevator service company (Doc Pros) “approximately 5 months prior to the claimed incident” (*id.* ¶¶ 7, 20), but fails to provide any further information regarding this service visit, such as why the elevator needed service/maintenance in the first place or whether the requested service/maintenance was properly performed and/or fixed whatever issue it was meant to address.

Defendant has therefore failed to demonstrate the litigation has “no merit” or that there is no reasonable probability that

		the plaintiff will prevail based on the weight of the evidence. Defendant has also failed to provide any argument or authority as to how, on these facts, plaintiff's claim fails as a matter of law. (See Mtn. Memo. P&As, in passim.) Defendant's request for judicial notice is GRANTED. (See Evid. Code, § 452, subds. (d), (h).) Trial is set for September 21, 2026 at 9:30 a.m. in Department C28. The parties are ordered to comply with the court's standing order and Local Rule 317. Should plaintiff desire a trial by jury, plaintiff is ordered to post jury fees on or before August 21, 2026. Failure to post jury fees could result in a waiver of the right to a jury trial. Defendant shall give notice of this ruling.
52.	Matthew R. Silver and Civica Law Group APC v. Curtis R. Wright 2025-01478015	Petitioners Matthew R. Silver and Civica Law Group APC's motion to appoint receiver is DENIED WITHOUT PREJUDICE. (Code Civ. Proc., § 564 [authorizing receivership].) While moving petitioners request a receivership to enforce an injunction which does not appear mandatory on its face, the practical effect of the requested relief, allowing appointment of a receiver with broad powers over respondents' business, is barred by the appellate stay. (Code Civ. Proc., § 916, subd. (a) ["the perfecting of an appeal stays proceedings in the trial court upon the judgment or order appealed from or upon the matters embraced therein or affected thereby"]; <i>Daly v. San Bernardino County Bd. of Supervisors</i> (2021) 11 Cal.5th 1030, 1040-1041 [appellate stays re: mandatory vs. prohibitory injunctions]; <i>Varian Medical Systems, Inc. v. Delfino</i> (2005) 35 Cal.4th 180, 189-190 ["In determining whether a proceeding is embraced in or affected by the appeal, we must consider the appeal and its possible outcomes in relation to the proceeding and its possible results ... A trial court proceeding ... affects the effectiveness of an appeal if the possible outcomes on appeal and the actual or possible results of the proceeding are irreconcilable ... [or] if the very purpose of the appeal is to avoid the need for that proceeding".]) As the motion is denied due to the appellate stay and the court does not reach the merits at this time, moving party's request for judicial notice is also DENIED WITHOUT PREJUDICE. (<i>Soukup v. Law Offices of Herbert Hafif</i> (2006) 39 Cal.4th 260, 295 [court is not required to take judicial notice of irrelevant documents].) Petitioners shall give notice of this ruling.

53.	Singh v. Parkside Property Owners Association 2026-01539180	Petitioner Kulwinder Singh's motion for reconsideration of the court's March 13, 2026 order denying a preliminary injunction is DENIED. Petitioner brings this motion under C.C.P. § 1008 which governs motions for reconsideration and requires that such motions be based on "new or different facts, circumstances, or law." A motion for reconsideration must be supported by proper declarations establishing these new facts or changed circumstances. Petitioner in substance argues that he has satisfied § 1008 because a technical issue caused the omission of the declaration of Oleksandr Mykhailonok at the time of the March 13, 2026 hearing. Petitioner claims the omission was prejudicial to the outcome of the motion. However, at the hearing of March 13, 2026 the court stated that the missing declaration would not have aided petitioner, as (as summarized) it was hearsay. The premise of plaintiff's argument is that Fei was removed (as opposed to resigning) from defendant's board. However, plaintiff has not submitted persuasive evidence in support of this point. Plaintiff referenced a declaration that is not in the court's file. But even accepting plaintiff's summary of the declaration, it would be hearsay. March 13, 2026 Minute Order, ROA 55, (emphasis added.) Hearsay statements are not evidence. Having looked at the two declarations of Oleksandr Mykhailonok submitted with the current motion, the court concludes the same: these are hearsay—out of court statements of Fei being offered for the truth of the matter asserted (that Fei was forced to resign). In short, the evidence submitted by petitioner is not new. But even considering the declarations, it does not change the court's analysis, and therefore does not change the outcome of the request for a preliminary injunction. See <i>Yuzon v. Collins</i>, (2004) 116 Cal.App.4th 149 (the trial court denied a motion for reconsideration, finding that the declaration "failed to constitute new evidence warranting reconsideration, and even if the declaration constituted new evidence, it failed to provide a basis to change the court's ruling."). See also <i>Wiz Technology, Inc. v. Coopers & Lybrand</i>, (2003) 106 Cal.App.4th 1, 17 ("Wiz failed to meet its burden under Code
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		of Civil Procedure section 1008, because the declarations did not provide any basis for reconsideration.”) In other places in the motion (pgs. 5-6), petitioner cites to events from May 2025, June 2025, and September 2025, but fails to identify why these items that predated the March 13, 2026 hearing were not included in the original motion. The court finds there is no basis under C.C.P. § 1008 to reconsider its ruling of March 13, 2026. As a result, petitioner’s motion is DENIED. The court confirms that the hearing on the Petition (ROA 2) will be on August 14, 2026 at 9:30 a.m. in Department C28. Petitioner’s opening brief shall be filed no later than July 17, 2026. Respondent’s opposition brief shall be filed no later than July 31, 2026. Petitioner’s reply brief shall be filed no later than August 7, 2026. (ROA 76, 77) Respondent shall give notice of this ruling.
54.	Pacheco v. Guardian Storage Centers, LLC 2025-01535561	Defendants Guardian Storage Centers, LLC and StorAmerica Management, LP’s motion to strike portions of first amended complaint is GRANTED with 10 days leave to amend as to the words “and punitive damages” in paragraph 82 only, and otherwise DENIED. <u>Paragraphs 53, 63, 73, 101, 106 & the prayer for relief at item/paragraph 3.</u> The pertinent portions of paragraphs 53, 63, 73, 101, and 106 appear under the third, fourth, fifth, eighth, and ninth causes of action for retaliation for taking pregnancy disability leave, pregnancy discrimination, disability discrimination, failure to prevent retaliation and discrimination, and wrongful termination in violation of public policy, respectively. The prayer for relief at item/paragraph 3 seeks punitive damages under the “[t]hird, [f]ourth, [f]ifth, and [n]inth [c]auses of [a]ction....” (See Compl. at p. 26, ll. 10-13.) The first amended complaint (FAC) alleges sufficient facts in support of “malice” for punitive damages under each of these causes of action. (See Civ. Code, § 3294, subds. (a), (b), (c)(1); FAC ¶¶ 17-18, 48-51, 58-61, 80, 94-99, 153-160 [defendants terminated plaintiff’s employment based in part on the fact that she took protected pregnancy disability leave and then attempted to hide their illegal motive under the false pretext of “business needs”]; see also <i>id.</i> ¶¶ 15, 16, 22, 46, 53, 54, 63, 64, 99 [acting through managing agent Bobby Piccio].)

		<u>Paragraph 82.</u> The FAC fails to allege sufficient facts in support of punitive damages under the sixth cause of action for failure to provide reasonable accommodation, under which paragraph 82 appears. (See Civ. Code, § 3294, subds. (a)-(c); <i>Neisendorf v. Levi Strauss & Co.</i> (2006) 143 Cal.App.4th 509, 517 [“While an employer’s duties under the FEHA include extending reasonable accommodations to an employee if reasonable accommodations will enable the employee to perform his or her essential duties (Gov. Code, § 12940, subds.(a)(1), (2)), there is no similar provision in the CFRA requiring an employer to provide reasonable accommodation to an employee returning from CFRA leave.”]; see also FAC ¶¶ 17-18, 76-77 [defendants provided plaintiff with disability leave for the entire duration of her alleged disabilities].) The case management conference is continued to October 26, 2026 at 9:00 a.m. in Department C28. Defendants shall give notice of this ruling.
55.	ACI Jet Orange County, LLC v. Daichendt 2024- 01379682	Defendant Joseph Daichendt’s Motion to Disqualify Gerald Klein as counsel for any party or witness in this matter is DENIED. As a non-client, Daichendt must establish he has standing to seek disqualification of Klein from representing any other party or witness in these proceedings. “California ... permits a nonclient to move for disqualification of opposing counsel under certain circumstances ... where the ethical breach is manifest and glaring and so infects the litigation in which disqualification is sought that it impacts the moving party’s interest in a just and lawful determination of [his or] her claims, a nonclient might meet the standing requirements to bring a motion to disqualify based upon a third party conflict of interest or other ethical violation.” (<i>Conservatorship of Lee C.</i> (2017) 18 Cal.App.5th 1072, 1083 [internal citations and quotation marks removed] [citing <i>Kennedy v. Eldridge</i> (2011) 201 Cal.App.4th 1197, 1204].) Daichendt attempts to establish standing to seek disqualification of Mr. Klein by arguing that Klein has suborned perjury. “The elements of subornation of perjury are: (1) a corrupt agreement to testify falsely; (2) proof that perjury has in fact been committed; (3) the statements of the witness who committed perjury are material; and (4) such statements were willfully made with knowledge as to the falsity of the statements.” (<i>People v. Lucero</i> (2019) 41 Cal.App.5th 370, 406.) Daichendt reasons that Klein has suborned perjury because his client, William Borgsmiller, in a deposition taken in the

related proceeding, submitted an errata sheet on the advice and under the supervision of Mr. Klein that materially altered deposition testimony that Daichendt believes is important to his case. Namely, the deposition testimony at issue is as follows:

WITNESS: There were multiple reasons we set it up that way.

Q: Tell me all of them.

WITNESS: One, was to structure it correctly around the law relating to the air carrier....

In Borgsmiller's deposition errata, the answer is changed to state "structure it correctly under the law" and notes that this is a change made to correct a transcription error.

Daichendt argues that this is false, as Borgsmiller clearly said "around" and not "under" at the deposition. Daichendt reasons that since Klein was aware this change was false, he suborned perjury.

This argument fails.

As an initial matter, Code Civ. Proc. §2025.520, subd. (b) permits a deponent to "change the form or the substance of the answer to a question..." Even if Borgsmiller uttered the word "around" at his deposition, he was within his right to change his testimony to "under." Thus there is no ground for this claim of subornation of perjury and no basis to disqualify Mr. Klein from representing any party or witness in this action when the witness did what the law permits.

Furthermore, even if this change could possibly constitute perjury, Daichendt has made no evidentiary showing of Klein's involvement. Speculation is not evidence.

The court rules as follows on the evidentiary objections.

Objections to the Declaration of Zfaty. Sustained in part as to No. 1 ("on the advice and under the supervision of his counsel, Gerald Klein") otherwise overruled. Sustained as to Nos. 2-3, 5, 7-8. All other objections are overruled.

Objections to the Declaration of Klein. Sustained in part as to No. 4 ("For whatever reason, . . . to disqualify me.") otherwise overruled. Sustained as to Nos. 9-22. All other objections are overruled.

The court did not consider the evidence in reply.

		The case management conference is set for August 3, 2026 at 9:00 a.m. in Department C28. Plaintiff shall provide notice of this ruling.
56.	Nguyen v. Lucatero 2025-01450476	Defendant Vietnamese Buddhist Congregation Association's motion for summary judgment is GRANTED. Defendant has met its initial burden to show plaintiff Mai T. Nguyen's claims are without merit. (See Code Civ. Proc., § 437c, subds. (a), (p)(2) [burden]; <i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850-851 [same]; Civ. Code §3342 [strict liability only applies to owner]; <i>Wise v. Superior Court</i> (1990) 222 Cal.App.3d 1008, 1013 [elements of negligence]; <i>Yuzon v. Collins</i> (2004) 116 Cal.App.4th 149, 152 [landlord duty of care requires actual knowledge of dangerous propensities of dog]; SSUMF Nos 1-7; 11-13; 15.) Since the motion is unopposed, plaintiff has failed to meet her shifted burden to show any material triable issue. The court orders judgment in favor of Defendant Vietnamese Buddhist Congregation Association. Upon review of the docket, the court notes that there is a hearing on June 22, 2026 to address motions to be relieved as counsel for plaintiff. It appears to the court that attorney Hoan N. Nguyen's motion is moot, given the substitution of attorney form filed by Hoan N. Nguyen. (ROA 64). The court notes that, while filed on April 1, 2026, the form is signed as of October 30, 2025 and substituted Bobbi Bolton of Pacific Coast Injury Law Center as plaintiff's new counsel. As it relates to the motion to be relieved filed by Richard Kwak of Pacific Coast injury Law Center (ROA 57), it is unclear to the court whether Bobbi Bolton, Esq. (also of Pacific Coast injury Law Center) intends to continue representing plaintiff or whether Pacific Coast Injury Law Center seeks to be relieved as counsel—including relieving Bobbi Bolton. Given these uncertainties, plaintiff's counsel shall be prepared to discuss their intention concerning the motion to withdraw. The case management conference is continued to October 26, 2026 at 9:00 a.m. in Department C28. Defendant shall give notice of this ruling.

57.	Airgap Labs LLC v. Torres 2025-01477064	Defendants Issac Torres, Brett Stetzko and Vortek Solutions LLC's Demurrer to the First Amended Complaint ("FAC") is SUSTAINED in part and OVERRULED in part. <u>Defendants' Request for Judicial Notice</u> is GRANTED as to Exhibit A. First (Breach of Contract), Second (Breach of Implied Covenant of Good Faith and Fair Dealing), and Fifth (Inducing Breach of Contract) Breach of Contract The first, second and fifth causes of action are premised on the existence of a valid contract. All three causes of action allege that the AirGap Employee Handbook, which is attached as Exhibit A to the FAC, is a contract. However, the Handbook expressly states that it is not a contract. Courts have held that handbooks explicitly stating they are not intended to be a contract or "to otherwise create any legally enforceable obligations" cannot form the basis of a contract claim because it lacks mutual assent. (<i>Esparza v. Sand & Sea, Inc.</i> (2016) 2 Cal.App.5th 781, 789.) In <i>Mendoza v. Trans Valley Transport</i> (2022) 75 Cal.App.5th 748, the court found there was no valid agreement to arbitrate where the employee handbook in which the agreement was contained stated that the "handbook is designed for quick reference and general information and "[i]s not intended as a contract of employment and does not provide in detail all of the company's policies." (Id. at 782-788.) The Handbook in this case contains similar language. Section 1.1 of the alleged and purported contract, titled "Handbook Disclaimer" expressly states: "The contents of this handbook serve only as guidelines and supersede any prior handbook. Neither this handbook, nor any other policy or practice, creates an employment contract, or an implied or express promise of continued employment with the company." Further, Section 2.1 of the alleged contract, titled "At-Will Employment" states: "Nothing in this handbook may be construed as creating a promise of future benefits or a binding contract between Airgap Labs, LLC and any of its employees." This section also states that the policies in the handbook "may be amended, modified, or terminated at any time by Airgap Labs LLC..." Here, a reasonable interpretation of the introductory language is that it means exactly what it says – that the handbook serves only as guidelines and did not create an employment
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	contract. Therefore, the Handbook cannot form the basis of a breach of an express contract claim. Plaintiff argues, at minimum, that it has adequately plead the existence of an implied-in-fact agreement concerning confidentiality, protection of company property, and loyalty to AirGap. Plaintiff has only alleged a cause of action for breach of an express contract, and not breach of an implied contract. Accordingly, the demurrer to the first cause of action is SUSTAINED with leave to amend. Breach of Implied Covenant of Good Faith and Fair Dealing The prerequisite for any action for breach of the implied covenant of good faith and fair dealing is the existence of a contractual relationship between the parties (express or implied), since the covenant is an implied term in the contract. (<i>Foley v. Interactive Data Corp.</i> (1988) 47 Cal.3d 654, 683-684; <i>Alameda Health System v. Alameda County Employees' Retirement Assoc.</i> (2024) 100 Cal.App.5th 1159, 1190.) As stated above, Plaintiff has only alleged breach of a written agreement. Because the Handbook is not a written contract between the parties, Plaintiff must allege the existence of an implied contract, which it has not done. Accordingly, the demurrer to the second cause of action is SUSTAINED with leave to amend. Inducing Breach of Contract As stated above, Plaintiff has only alleged breach of a written agreement. Because the Handbook is not a written contract between the parties, Plaintiff must allege the existence of an implied contract, which it has not done. Accordingly, the demurrer to the fifth cause of action is SUSTAINED with leave to amend. Third (Breach of Fiduciary Duty), Fourth (Aiding and Abetting Breach of Fiduciary Duty), Seventh (Violation of Business and Professions Code § 17200), Eighth (Intentional Interference with Economic Relations), Ninth (Negligent Interference with Economic Relations), Twelfth (Conversion), and Thirteenth Causes of Action (Breach of Duty of Loyalty) Plaintiff's sixth cause of action for misappropriation of trade secrets under the California Uniform Trade Secret Act (CUTSA) alleges that during the course of their employment, Torres
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	and Stetzko gained access to proprietary trade information, and then disclosed that information to Vortek who then used that information to compete with AirGap. Defendants argue the third, fourth, seventh, eighth, ninth, twelfth and thirteenth causes of action are preempted by the CUTSA. (<i>K.C. Multimedia, Inc. v. Bank of America Technology & Operations, Inc.</i>, (2009) 171 Cal.App.4th 939, 958). The preemption inquiry focuses on whether the common law claims are based on the same nucleus of facts that would be used to support a claim for misappropriation of trade secrets. (<i>Id.</i>, at 958-959). A claim cannot simply depend on a different theory of liability to avoid the CUTSA's preemptive effect. (<i>Id.</i>, at 957-959 & fn. 7). Rather, a claim avoids preemption only if it is based on facts [independent] [and] distinct from the facts that support the misappropriation claim. (<i>Angelica Textile Services, Inc. v. Park</i> (2013) 220 Cal.App.4th 495, 499). Here, Defendants argue these causes of action are based on the same nucleus of facts, namely the misappropriation of confidential and proprietary information. There are no independent and distinct facts separate from the alleged misappropriation of trade secrets. In Opposition, Plaintiff contends the CUTSA expressly preserves contractual remedies and does not displace civil claims that are independent of trade secret misappropriation. (Civ. Code § 3426.7(b).) As the Court of Appeal explained in <i>Angelica Textile Services, Inc. v. Park</i> (2013) 220 Cal.App.4th 495, CUTSA does not displace non-contract claims that, although related to trade secret misconduct, are "independent and based on facts distinct from the facts that support the misappropriation claim." (<i>Id.</i> at 506.) Indeed, <i>Angelica</i> specifically held that claims based upon employee disloyalty, disparagement of the employer, solicitation of customers, solicitation of employees, and retention of company documents may survive independently of any trade secret claim. (<i>Id.</i> at pp. 499, 506-508.) While these claims involve allegations of misappropriation of trade secret, they are not wholly dependent on such allegations. With respect to the third, fourth and thirteenth causes of action for breach of fiduciary duty and aiding and abetting breach of fiduciary duty, the claims against Defendants are independent of Plaintiff's trade secret claim. These causes of action are based on Torres and Stetzko violation of their duty of loyalty and are not solely dependent on their misappropriation of any trade secret claim. As for seventh, eighth and ninth causes of action, these claims are also based on facts that are independent of the
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	misappropriation of trade secrets claim. Plaintiff alleges Defendants damaged its reputation by, among other things, recruiting employees and diverting customer relationships. Such claims are not dependent on the facts supporting the misappropriation claim. The twelfth cause of action alleges Defendants maintained possession of Plaintiff's computer after he was terminated, which likewise is not dependent on a trade secret misappropriation claim. Accordingly, the demurer to the third, fourth, seventh, eighth, ninth, twelfth and thirteenth causes of action is OVERRULED. Tenth Cause of Action - Violation of Comprehensive Computer Data Access Fraud Act Penal Code § 502 makes it a public offense to knowingly access, alter, damage, delete, or use a computer, computer system, or network without permission. The FAC alleges that defendants Torres and Stezko intentionally exceeded their authorized access to AirGap's computer systems by engaging in the intentional copying, movement, and deletion of AirGap's trade secret and confidential information from AirGap's drive and other storage media, both physical and in the cloud, in violation of AirGap's applicable policies. (FAC, ¶ 131.) Such actions were undertaken for the benefit of their future company, Vortek. (FAC, ¶ 133.) Defendants contend such allegations are not plausible because Vortek was not formed until after Stezko had left his employment and Torres was not employed until several months after he left Plaintiff's employment. Moreover, when the information was accessed, Defendants were employees of Plaintiff and had authority to "prepare detailed sales proposals, and product presentations tailored to customer needs, and collaborate with technical pre-sales engineers and solution architects to design and pitch Fortinet solutions." (FAC ¶17.) If employees were authorized to have access to and use the information that was copied and downloaded while employed, then there is no violation of the Penal Code section 502 as a matter of law. (See <i>Oracle USA, Inc. v. Rimini St., Inc.</i> (9th Cir. 2018) 879 F.3d 948, 962.) But on demurrer, the court assumes the truth of the factual allegations. The FAC alleges Torres and Stezko did not have authorization to access Plaintiff's computer systems to copy and take copy and confidential information. (FAC, ¶¶ 131-
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		132.) This is sufficient to state a claim for violation of Penal Code § 502. As to Vortek, there are no factual allegations as to how it accessed Plaintiff's computers or otherwise took actions to knowingly assist Torres and Stetzko in accessing the computer system. Moreover, Vortek was not in existence at the time Torres and Stetzko were employed by Plaintiff. Accordingly, the demurrer to the eleventh cause of action is OVERRULED as to Torres and Stetzko and SUSTAINED as to Vortek with leave to amend. Fourteenth Cause of Action – Violation of Penal Code § 496 Penal Code § 496 makes it a crime to buy, receive, conceal, sell, or withhold property that is known to be stolen or obtained in any manner constituting theft or extortion. The FAC alleges Defendants knowingly received and possessed AirGap's property knowing that such property had been obtained unlawfully and without Plaintiff's consent. Defendants argue the FAC fails to allege Defendants had "actual knowledge of the stolen character of the property." But this argument is just a matter of semantics. Plaintiff alleges the property was "unlawfully obtained" which is synonymous with theft. Accordingly, the demurrer to the fourteenth cause of action is OVERRULED. The case management conference is continued to October 26, 2026 at 9:00 a.m. in Department C28. Plaintiff has 20 days leave to amend the complaint. Defendants shall give notice of this ruling.
58.	Rajabi v. Smith 2023-01344444	The court will not issue a tentative on the motion to enforce the settlement or on the motion for leave to intervene. The parties and/or their counsel are ordered to appear on June 8, 2026 to discuss the status of this case.
59.	Vizcarra v. Bevmó! Inc. 2023-01348855	Defendant / cross-defendant Dock Pros, Inc.'s unopposed motion for summary adjudication as to plaintiff Isidro Vizcarra's complaint, as well as indemnity cross-complaints by defendants / cross-complainants Bevmó! Inc. ["Bevmó"], and Shear Construction, is GRANTED IN PART and MOOT IN PART. (Code Civ. Proc., § 437c [authorizing motion].)

		The motion is MOOT as to Shear Construction's cross-complaint, which was dismissed on 5-12-26. (ROA 342.) The remainder of the motion is GRANTED. On summary judgment / adjudication, the moving party's papers are strictly construed, while the opposing party's papers are liberally construed. (<i>Comm. to Save Beverly Highland Homes Assoc. v. Beverly Highland</i> (2001) 92 Cal.App.4th 1247, 1260.) A court may not make credibility determinations or weigh the evidence on a motion for summary judgment / adjudication, and all evidentiary conflicts are to be resolved against the moving party. (<i>McCabe v. American Honda Motor Corp.</i> (2002) 100 Cal.App.4th 1111, 1119.) Moving Party was named as Doe 3, and thus is named in plaintiff's 1st C/A for negligence and 2nd C/A for premises liability, but not the 3rd C/A for products liability. (MP Ex. K [Complaint], Ex. L [Doe amendment].) The elements of negligence [1st C/A] are: (1) defendant's legal duty to conform to a standard of conduct to protect the plaintiff; (2) defendant failed to meet this standard of conduct; (3) causation; (4) damages. (<i>Ladd v. County of San Mateo</i> (1996) 12 Cal.4th 913, 917.) The elements of a premises liability claim [2nd C/A] are the same for negligence generally: a legal duty of care, breach of that duty, and proximate cause resulting in injury. (<i>Kesner v. Superior Court</i> (2016) 1 Cal.5th 1132, 1158; citations omitted.) Premises liability "is grounded in the possession of the premises and the attendant right to control and manage the premises ..." (<i>Id.</i>; citations omitted; see also CACI 1000 [elements of a claim for premises liability are: (1) defendant owned, leased, occupied, and/or controlled the property; (2) defendant was negligent in the use or maintenance of the property; (3) causation; (4) damages].) Moving party has proven that neither plaintiff nor Bevmo can establish the essential elements of duty and/or breach, because it installed the subject dock lift with safety chains (Moving Party Separate Statement, Fact Nos. 1, 2); that it has not performed any work, services, or maintenance thereafter (<i>Id.</i>, Fact No. 8); and never received any complaints or other notice regarding the subject dock lift or safety chains thereafter (<i>Id.</i>, Fact Nos. 9-11). (<i>Ladd v. County of San Mateo</i> (1996) 12 Cal.4th 913, 917 [negligence elements]; <i>Kesner v. Superior Court</i> (2016) 1 Cal.5th 1132, 1158 [premises liability elements]; <i>Bailey v. Safeway, Inc.</i> (2011) 199 Cal.App.4th 206, 212 [indemnity elements].)
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